

24STCV29859 24STCV29859

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-10

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C732%2C07%2F10%2F2026

Source SHA-256: af24fd5dfd5f4f1f73b6456a326fef1a6409d49b7494924624dca01e4af97f28

Case Number: 24STCV29859 Hearing Date: July 10, 2026 Dept: 732

Superior Court of California

County of Los Angeles

Department 732

LA COMMERCIAL, INC.,

Plaintiff,

ASSOCIATED CONSTRUCTION, LLC, et

al.,

Defendants.

Case No.:

24STCV29859

Hearing Date: July 10, 2026

[TENTATIVE] RULING RE:

Simrandeep S. Tiwana of the firm Meyers Nave's Motion to Be

Relieved as Counsel for Defendant Associated Construction, LLC

Code of Civil Procedure § 284 states that

"[t]he attorney in an action or special proceeding may be changed at any time before or after judgment or final determination" upon either consent of both

client and attorney, or “[u]pon order of the court, upon the application of either client or attorney, after notice from one to the other..” (Code Civ. Proc. § 284, subd. (b).) California Rule of Court (“CRC”) Rule 3.1362 states the requirements for a motion to be relieved as counsel under Code of Civil Procedure § 284. No memorandum is required (CRC Rule 3.1362, subd. (b)), but the motion must be accompanied by (1) a declaration stating why a motion has been brought instead of filing a consent (without compromising attorney-client confidentiality) (CRC Rule 3.1362, subd. (c)); (2) proof of service of the motion (CRC Rule 3.1362, subd. (d); and (3) all hearing dates scheduled in the action or proceeding, including the date of trial. (CRC Rule 3.1362, subd. (e).) “The proposed order relieving counsel must be prepared on the Order Granting Attorney’s Motion to Be Relieved as Counsel--Civil (form MC-053) and must be lodged with the court with the moving papers.” (Ibid.)

The present motion pertains to Simrandeep S. Tiwana, of the firm Meyers Nave, counsel for Defendant Associated Construction, LLC. The motion is supported by a declaration of counsel, who states that permissive withdrawal is appropriate under California Rules of Professional Conduct, Rule 1.16, subd. (b)(4), (5), and (10), which pertain to situations in which the client makes it unreasonably difficult to carry out the representation, the client breaches a material term of the agreement, or the attorney believes the tribunal granting permission to withdraw will find good cause therefore. (Tiwana Decl. Att. 2.) The motion includes a proof of service and a proposed order form listing upcoming dates of hearing. Trial is set for October 26, 2027.

Counsel does not set forth sufficient grounds to grant the requested relief. The supporting declaration includes no factual information. It cites certain grounds for permissive withdrawal within the Rules of Professional Conduct, including a catchall provision, and states that the attorney seeks relief under these grounds. This is insufficient, as the declaration does not state even in “general terms” why the present motion is brought in lieu of a voluntary substitution. (CRC Rule 3.1362, subd. (c).)

Accordingly, the motion is CONTINUED to permit counsel Simrandeep S. Tiwana to submit a declaration stating in “general terms” why relief is sought in the present motion. [1]

Dated: July 9, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court

[1]

Defendant at issue here is a corporation, which may not represent itself without an attorney. (See CLD

Construction, Inc. v. City of San Ramon (2004) 120

Cal.App.4th 1141, 1145.) This does not preclude counsel from relief on the present motion, but requires that Defendant be warned of the consequences of failing to retain counsel within a reasonable time, including, potentially, the striking of its answer and the entry of its default. (See Gamet v. Blanchard (2001) 91 Cal.App.4th 1276, 1284 fn. 5; Van Gundy v. Camelot Resorts, Inc. (1983) 152 Cal.App.3d Supp. 29, 32.)